

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO S.B. 1233
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 2, Arizona Revised Statutes, is
3 amended by adding article 5, to read:

4 ARTICLE 5. STATE AGENCIES

5 36-281. Administrative deficiencies; cure period; definitions

6 A. AN AGENCY MAY ~~[NOT]~~ TAKE ~~[ANY]~~ DISCIPLINARY OR ENFORCEMENT
7 ACTION AGAINST A FACILITY THAT THE AGENCY EITHER CONTRACTS WITH OR
8 LICENSES IF ONLY AN ADMINISTRATIVE DEFICIENCY OR DEFICIENCIES ARE
9 IDENTIFIED~~[.]~~ [, ONLY IF] THE AGENCY ~~[MUST ALLOW]~~ [ALLOWS] THE FACILITY
10 SEVENTY-TWO HOURS TO CURE ~~[ANY]~~ [THE] IDENTIFIED ADMINISTRATIVE DEFICIENCY
11 ~~[OR DEFICIENCIES]~~ BEFORE THE AGENCY ~~[MAY TAKE ANY DISCIPLINARY OR~~
12 ~~ENFORCEMENT]~~ [TAKES THE] ACTION.

13 B. FOR THE PURPOSES OF THIS SECTION~~[,]~~ [:]

14 [1. "ADMINISTRATIVE DEFICIENCY" MEANS A VIOLATION THAT DOES NOT
15 IMPACT A PATIENT OR RESIDENT PHYSICALLY OR PSYCHOSOCIALLY AND THAT HAS NO
16 POTENTIAL TO PHYSICALLY OR PSYCHOSOCIALLY HARM THE PATIENT OR RESIDENT.

17 2.] "AGENCY" MEANS THE DEPARTMENT OF HEALTH SERVICES, THE ARIZONA
18 HEALTH CARE COST CONTAINMENT SYSTEM OR THE DEPARTMENT OF ECONOMIC
19 SECURITY.

20 Enroll and engross to conform

21 Amend title to conform